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Case Number: 22PSCV00471 Hearing Date: August 13, 2026 Dept: 6

CASE

NAME: David

Guzman v. Dean Edward Hines, et al.

Defendant

Dean Edward Hines' Motion to Set Aside Default

TENTATIVE

RULING

The Court DENIES Defendant Dean Edward Hines' Motion to Set Aside Default with prejudice.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a real property sale dispute. On May 17, 2022, plaintiff David Guzman (Plaintiff) filed this action. On February 24, 2025, Plaintiff filed the operative Second Amended Complaint (SAC) against defendant Dean Edward Hines (Defendant), alleging causes of action for breach of contract, conversion, fraud, and quiet title.

On April 8, 2026, after a default prove-up hearing, the Court entered judgment in favor of Plaintiff on Plaintiff's breach of contract claim. Plaintiff dismissed the quiet title claim and the Court found against Plaintiff on the conversion and fraud claims.

On July 16, 2026, the Court denied Defendant's motion to set aside default.

On July 20, 2026, Defendant moved again to set aside the default judgment. On July 31, 2026, Plaintiff opposed the Motion. Defendant did not reply to Plaintiff's Opposition.

LEGAL STANDARD

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ.
Proc., § 473, subd. (b).)

(a)

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written

notice that the default or default judgment has been entered.

(b)

A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.

(c)

Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.

(Code Civ.

Proc., § 473.5, subds. (a)-(c).)

A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. For a failure to comply with this subdivision, any order made on a subsequent application may be revoked or set aside on ex parte motion.

(Code Civ.

Proc., § 1008, subd. (b).)

PRELIMINARY ISSUE

"Every pleading, petition, written notice of motion, or other similar paper shall be signed by at least one attorney of record in the attorney's individual name, or, if the party is not

represented by an attorney, shall be signed by the party. Each paper shall state the signer's address and telephone number, if any. Except when otherwise provided by law, pleadings need not be verified or accompanied by affidavit. An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7, subd. (a).) Defendant's moving papers are unsigned (yet again), which Defendant needs to correct promptly. (See Order Re: Court Ruling (7/16/26).)

"Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." (Cal. Rules of Court, rule 3.1113, subd. (d).) "A memorandum that exceeds 10 pages must include a table of contents and a table of authorities." (Id., rule 3.1113, subd. (f).) Plaintiff's Opposition memorandum violates both of these rules because it is 16 pages long and contains no table of contents or table of authorities. Also, "[a] memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." (Id., rule 3.1113, subd. (g).) Plaintiff's Opposition is therefore untimely. The Court nevertheless exercises its discretion to still consider Plaintiff's Opposition, but admonishes Plaintiff to comply with the California Rules of Court going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

The Court further notes that Plaintiff's Opposition cites *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 720, fn. 7 for the proposition that "Statements contained within a memorandum of points and authorities are not evidence" and for the quotation that "Statements of fact contained in a memorandum of point and authorities are not evidence." (Opp., 13:9-12.) That case contains no such proposition or quotation. The Court will discuss this further with Plaintiff's counsel at the hearing on the Motion.

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS Plaintiff's request for judicial notice. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take

judicial notice of the truth of the factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400; Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Summary of Arguments

Defendant

moves to set aside the default and default judgment under Code of Civil Procedure section 473.5, contending that service of the summons did not result in actual notice to him in time to defend, that his Motion is timely, and that his lack of notice was not caused by avoidance of service or inexcusable neglect. Defendant asserts that he was served only once between June and December 2025 and that the service was defective, and he argues that Plaintiff failed to follow the correct procedures and time limits in obtaining the default judgment, pointing to two Requests for Entry of Default that the clerk rejected in September 2025 and a December 10, 2025 request that he says was filed without any proof of service. Defendant further contends that a default judgment entered October 29, 2024 stating that “plaintiff to take nothing” adjudicated and closed the entire case, such that Plaintiff’s subsequent amended complaints were filed on a closed matter without any motion to set aside, and he asks the Court to dismiss the action in its entirety, remove the default against him, and reverse any resulting damage.

In

opposition, Plaintiff argues that the Motion is procedurally barred, legally meritless, and an improper attempt to relitigate relief this Court already denied, because it seeks the identical relief as Defendant’s first motion without identifying any newly discovered evidence or change in controlling law. Plaintiff contends that section 473.5 is inapplicable on its face because the record establishes actual notice: Defendant was personally served, personally filed a verified Answer on June 17, 2022 admitting and denying allegations and asserting five affirmative defenses, and thereby made a general appearance submitting to the Court’s jurisdiction. Plaintiff maintains that Defendant’s default did not result from lack of notice but from the striking of his Answer as a sanction after he repeatedly failed to appear at hearings despite multiple court orders, and that Hines was again served with the operative SAC by the

Rice County Sheriff on March 18, 2025 and in open court on June 26, 2025, ordered to respond, and failed to do so. Plaintiff further argues that the Motion rests on no competent evidence, that Defendant misreads the October 29, 2024 judgment, which was entered in favor of the separately situated Estate of Lila Lee Hines and did not vacate Defendant's default or restore his stricken Answer, and that the Motion approaches the type of repetitive filing addressed by California's vexatious-litigant statutes.

Analysis

The

Court finds Defendant's Motion unavailing. Plaintiff is correct that the Court already addressed the issue of actual notice in Defendant's prior motion to set aside the default and concluded that Defendant had actual notice of this action. (See Order Re: Court Ruling (7/16/26).) Defendant presented no new or different facts, circumstances, or law, and no explanation for failing to present his current points earlier that would justify reconsideration of the Court's prior order or for Defendant to again request setting aside the default judgment. (Code Civ. Proc., § 1008, subd. (b).) To the extent Defendant relies on the judgment entered in favor of prior Defendant Estate of Lila Lee Hines (Estate), that is unavailing because that judgment applied only to the Estate, and not to Defendant. (See Judgment (10/29/24).)

Based on the foregoing, the Court DENIES the Motion with prejudice.

CONCLUSION

The Court DENIES Defendant Dean Edward Hines' Motion to Set Aside Default with prejudice.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.